AFRICAN UNION		UNION AFRICAINE
الاتحاد الأفريقي *African Commission on Human & Peoples' Rights*		UNIÃO AFRICANA *Commission Africaine des Droits de l'Homme & des Peuples*

31 Bijilo Annex Layout, Kombo North District, Western Region, P. O. Box 673, Banjul, The Gambia
Tel: (220) 4410505 / 4410506; Fax: (220) 4410504
E-mail: au-banjul@africa-union.org; Web www.achpr.org

COMMUNICATION 430/2012:

GABRIEL SHUMBA AND OTHERS (REPRESENTED BY ZIMBABWE LAWYERS FOR HUMAN RIGHTS)

V

REPUBLIC OF ZIMBABWE

Adopted by the
African Commission on Human and Peoples' Rights
during the 13th Extra-Ordinary Session, from the 19 to 25 February 2013
Banjul, The Gambia.

Hon. Commissioner Catherine Dupe Atoki
Chairperson of the African Commission on Human and Peoples' Rights

Dr. Mary Maboreke
Secretary to the African Commission on Human and Peoples' Rights

Communication 430/12 – Gabriel Shumba and Others (represented by Zimbabwe Lawyers for Human Rights) v Republic of Zimbabwe

Summary of the Complaint:

1. The Secretariat of the African Commission on Human and Peoples' Rights (the Secretariat), received a complaint on 27 December 2012 from Zimbabwe Lawyers for Human Rights (the Complainant), acting on behalf of Gabriel Shumba, Kumbirai Tasuwa Muchemwa, Gilbert Chamunorwa, Diana Zimbudzana and Solomon Sairos Chikohwero (the Victims).

2. The Complaint is submitted against the Republic of Zimbabwe, State Party to the African Charter on Human and Peoples' Rights (the African Charter).[1]

3. The Victims are all Zimbabwean citizens working in the Republic of South Africa, who are unable to travel to Zimbabwe on polling day for the referendum on the Draft Constitution and general elections thereafter. The Victims claim to have participated in the constitution drafting process, through participation in public consultations and attendances of diaspora meetings held by the Select Committee of Parliament in Johannesburg in 2010, but are unable to participate in the referendum.

[1] Zimbabwe ratified the African Charter on 30 May 1986.

4. It is alleged that the Victims' right to vote in referendum and elections is restricted by Section 3 of Schedule 3 of the Constitution of the Republic of Zimbabwe read together with Section 72 of the Electoral Act[2]. These sections prevent Zimbabweans based abroad from participating in any electoral process, unless the individuals are on duty in the service of the Government.

5. The Complaint provides a factual background dealing with the Victims' vested interest in the electoral processes of their country and the details leading to the upcoming referendum on the Draft Constitution. It further describes how certain provisions of the Constitution of the Republic of Zimbabwe and the Electoral Act restrict the right to vote of Zimbabweans living abroad.

6. The referendum on the Draft Constitution is scheduled to be held on 16 March 2013 and the general elections are expected to be held later in the year.

Articles alleged to have been violated:

7. The Complainant alleges violation of Articles 2, 3(1) and (2), 9 and 13(1) of the African Charter.

ACHPR

[2] Section 72 of the Electoral Act provides that "Where an election is to be held in a constituency, a person who is registered as a voter on the roll for that constituency shall be entitled to vote by post in terms of this Part if, on all polling days in the election, he or she will be outside Zimbabwe-

(a) On duty in the service of the Government; or

(b) As the spouse of a person referred to in paragraph (a); and so unable to vote at a polling station in the constituency."

Prayers:

8. The Complainant requests the Commission to:
   - Find the Respondent State in violation of the aforementioned Articles of the African Charter; and
   - Urge the Respondent State to amend the Constitution of the Republic of Zimbabwe, the Referendums Act and the Electoral Act to enable the Victims vote abroad.

Procedure:

9. The Secretariat received the Complaint on 27 December 2012 and acknowledged receipt of the same on 15 January 2013.

Analysis of the Commission on Seizure:

10. The Commission is of the view that the Complaint contains all the information required under Rule 93(2) of its Rules of Procedure.
11. The Commission also finds that the Complaint reveals prima facie violation of the African Charter.

Decision of the Commission on Seizure:

12. The Commission has decided to be seized of this Complaint.

AFRICAN UNION		UNION AFRICAINE
الاتحاد الأفريقي *African Commission on Human & Peoples' Rights*		UNIÃO AFRICANA *Commission Africaine des Droits de l'Homme & des Peuples*
31 Bijilo Annex Layout, Kombo North District, Western Region, P. O. Box 673, Banjul, The Gambia *Tel: (220) 4410505 / 4410506; Fax: (220) 4410504* *E-mail: au-banjul@africa-union.org; Web www.achpr.org*		

COMMUNICATION 430/2012:

GABRIEL SHUMBA AND OTHERS (REPRESENTED BY ZIMBABWE LAWYERS FOR HUMAN RIGHTS)

V

REPUBLIC OF ZIMBABWE

Provisional Measures

Adopted by the
African Commission on Human and Peoples' Rights
during the 13th Extra-Ordinary Session, from the 19 to 25 February 2013
Banjul, The Gambia.

Hon. Commissioner Catherine Dupe Atoki
Chairperson of the African Commission
on Human and Peoples' Rights

Dr. Mary Maboreke
Secretary to the African Commission on
Human and Peoples' Rights

1. The Commission further issues the following Provisional Measures in its own initiative in accordance with Rule 98(1) of its Rules of Procedure:

    i. That the Respondent State allows Zimbabweans living abroad to vote in the referendum of 16 March 2013 and the general elections thereafter, whether or not they are in the service of the Government;

    ii. That the Respondent State provides all eligible voters, including the Victims in this Communication, the same voting facilities it affords to Zimbabweans working abroad in the service of the Government; and

    iii. That the Respondent State takes measures to give effect to its obligations under the African Charter in accordance with Article 1 of the African Charter, including in areas of free participation in government.

2. The Commission requests the Respondent State to report back on the implementation of the Provisional Measures requested within fifteen (15) days of receipt of this decision in accordance with Rule 98(4) of its Rules of Procedure.



AFRICAN UNION

الاتحاد الأفريقي

African Commission on Human & Peoples' Rights

UNION AFRICAINE

UNIÃO AFRICANA

Commission Africaine des Droits de l'Homme & des Peuples

31 Bijilo Annex Layout, Kombo North District, Western Region, P. O. Box 673, Banjul, The Gambia;Tel: (220) 4410505 / 4410506; Fax: (220) 4410504; E-mail: au-banjul@africa-union.org; Web www.achpr.org

Ref: ACHPR/COMM/...144.2...../13
Date: 26 February 2013

Zimbabwe Lawyers for Human Rights
6th Floor, Beverly Court
100 Nelson Mandela Avenue
Harare, Zimbabwe
Tel: +263 4 705 370
+263 4 708 118
Fax: +263 4 705 646
Email: info@zlhr.org.zw
Website: www.zlhr.org.zw

Dear Madam/Sir,

Subject: Communication 430/12 – Gabriel Shumba and others (represented by Zimbabwe Lawyers for Human Rights) v. Zimbabwe

I write to inform you that at its 13th Extraordinary Session, held from 19 – 25 February 2013 in Banjul, The Gambia, the African Commission on Human and Peoples' Rights (the Commission) considered the above Communication and decided to be seized of the Complaint. The Commission further decided to issue Provisional Measures in accordance with Rule 98(1) of the Rules of Procedure of the Commission. These Provisional Measures are contained within the text of the Decision (herewith attached).

Please note that, in accordance with Rule 105(1) of the Rules of Procedure of the Commission, you are requested to present evidence and arguments on the admissibility of the Communication within two (2) months of this notification.

Kindly therefore forward to the Secretariat your arguments on admissibility within the deadlines stipulated.

Please accept my best regards.

at/MM

Sincerely,



Dr. Mary Maboreke
Secretary to the Commission

at/MM